

Court No. - 21

Case :- WRIT - C No. - 5685 of 2023

Petitioner :- Dinesh @ Umesh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ajendra Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has challenged the demand notice dated 02.01.2023 issued by respondent no. 2 for recovery of electricity dues from the petitioner in a case of theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the respondent no. 2 states that the impugned notice has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 20.2.2023

Arif

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)